

action was not brought to benefit the public but instead was brought to vindicate plaintiff's own personal rights and economic interests. (*Id.* at 1170-71.) The same rationale applies here.

The FAC in this matter seeks to advance and vindicate Plaintiff's own personal economic interest. There are no class or group claims. Nor does Plaintiff seek any kind of recovery that would benefit the general public, such as injunctive relief. The fact that this suit may 'send a message that sexual abuse and harassment will not be tolerated, does not rise to the level of conferring a 'significant benefit on the public. (*Ibid.*)

As such, Defendant's motion to strike Plaintiff's request for attorney's fees under Code of Civil Procedure § 1021.5 is **granted**.

Leave to Amend

"[T]he burden is on the plaintiff to show in what manner he or she can amend the complaint, and how that amendment will change the legal effect of the pleading." (*Medina v. Safe-Guard Products, Internat., Inc.* (2008) 164 Cal.App.4th 105, 112 fn. 8.) (citation omitted.) Plaintiff has failed to indicate how she could amend to properly state a claim for punitive damages. As such, leave to amend is denied at this time. If, during discovery, Plaintiff acquires additional facts to support such a claim she can file a motion for leave to amend to add her claim for punitive damages.

Conclusion

Defendant's motion to strike is **granted** as to the allegations relating to punitive damages. The motion is **granted** as to the allegations relating to attorney fees under Code of Civil Procedure § 1021.5, but denied as to the request for attorney fees under Civil Code § 52. Leave to amend is **denied** as explained above.

3. 9:00 AM CASE NUMBER: C23-01219
CASE NAME: ELVECIO MACHADO VS. GINO CARUSO
***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL**
FILED BY: CARS TO GO TOWING, INC.
TENTATIVE RULING:

Attorney Steven Sherman and Defendants Gino Caruso and Laudelina Caruso are **ordered to appear for Attorney Sherman's Motion to be Relieved as Counsel**. (Zoom appearance is allowed. Please check court website for access to Dept. 32's Zoom Room.)

4. 9:00 AM CASE NUMBER: C25-00131
CASE NAME: ELIJAH CABRERA VS. DONNICE MICHELLE DONALDSON
***HEARING ON MINOR'S COMPROMISE AS TO ELIJAH CABRERA**
FILED BY: CABRERA, RICHARD
TENTATIVE RULING:

Hearing required. (By Zoom is sufficient.) The Court wishes to assure that the guardian ad litem and the minor understand the effect of settlement, the nature of the annuity, and the availability of post-majority proceeds to the claimant.